

as among many other nations, as ceremonially defiling (1 S. 21^{5f.} Ex. 19¹⁵ Lev. 12 15^{19ff.} Ez. 36¹⁷ Is. 64⁶ Baruch 6²⁰). The original ground for this legislation lies most probably, as is suggested by Stade,⁴¹ in animism, which regards as unclean and defiling all such persons who are under the influence, that is, possessed by spirits, viz., those that suffer from certain diseases or have done certain acts that stand under the protection of certain spirits. It is, however, perfectly evident that this condition of ceremonial unfitness is only temporary: its removal can be effected. And the very exception of woman's fitness for the cult under those conditions proves the rule of her ordinary inclusion.

3. *Woman not excluded from the Three Yearly Feasts.*

"Three times in the year shall all thy males see⁴² the face of the Lord Jahveh" (Ex. 23¹⁷ 34²³ Deut. 16¹⁶). That this is an old law, and has reference to the three yearly feasts, is evident from the connection in which it is found. But it may well be remembered that its origin, like the origin of all the earliest legislation, was not theoretic but consuetudinary, the result of actual cases presented to the priest for decision. And it may well have had its occasion in the fact that such a law could not be put in effect in the case of woman as easily as in the case of man, and not without contravening the other custom and legislation that excluded her from the approach of holy things at certain periods, just considered. To infer, therefore, from this law woman's exclusion from all cult would be more than it can bear, and is contradicted by all the facts so far adduced. Neither is it a parallel case, as it seems to me, to be cited in connection with the custom that certain holy parts of an ox must not be eaten by women. Smith, *Rel. of Sem.*, p. 281, note 3.

4. *The Law of the Firstlings.*

The law of the firstlings with its emphasis upon the firstborn male might at first sight appear as a very formidable objection to woman's inclusion in cult; but upon careful examination the facts here will be found in harmony with those already adduced.

That the later legislation counts the males only as firstlings cannot be questioned (Nu. 3^{40ff.} [P]). But it seems to me altogether doubt-

⁴¹ *Gesch.* i. 483 f.; cf. also Smith's "Notes on Holiness, Uncleaness, and Taboo," in *Rel. of Sem.*, p. 426 ff., and "Taboos and the Intercourse of the Sexes," *ibid.*, p. 435 ff.; Wellhausen, *Heid.*, p. 116.

⁴² Not "appear before"; cf. Driver on *Deut.* 16¹⁶.